



CHAPTER cxiii.

An Act to constitute the West Cheshire Water Board to transfer to them the undertaking of the West Cheshire Water Company and certain works of the Wirral Waterworks Company and for other purposes. [7th August 1925.]

A.D. 1925.

WHEREAS the urban district of Bebington and Bromborough and the urban district of Ellesmere Port and Whitby in the administrative county of Chester are urban districts within the meaning of the Local Government Act 1894 and are under the management and local government of the urban district council of Bebington and Bromborough and the urban district council of Ellesmere Port and Whitby respectively :

And whereas the rural district of Wirral in the said county is a rural district within the meaning of the Local Government Act 1894 and is under the management and local government of the rural district council of Wirral :

And whereas the West Cheshire Water Company (in this Act referred to as "the Company") were incorporated by the West Cheshire Water Act 1884 and were empowered to construct works and to supply water within the limits defined by the said Act which have since been extended :

And whereas further powers were conferred on the Company by the West Cheshire Water Order 1894 confirmed by the Water Orders Confirmation Act 1894

A.D. 1925. by the West Cheshire Water Act 1911 and by the West
— Cheshire Water Act 1924 :

And whereas the Wirral Waterworks Company (in this Act referred to as "the Wirral Company") were incorporated by the Wirral Waterworks Act 1859 and further powers were conferred upon them by the Wirral Waterworks Act 1911 :

And whereas the Company and the Wirral Company obtain a supply of water for distribution in their respective limits of supply from certain works of the Company and the Wirral Company which are used jointly by the two companies :

And whereas by an agreement made the twenty-second day of July one thousand nine hundred and twenty-four between the urban district council of Bebington and Bromborough the urban district council of Ellesmere Port and Whitby and the rural district council of Wirral of the first part the Company of the second part the Wirral Company of the third part and the West Cheshire Water Company Limited of the fourth part which was scheduled to and confirmed by the West Cheshire Water Act 1924 provision was made for the purchase by a proposed water board representative of the said three councils of the undertaking of the Company certain wells boreholes lands rights and works of the Wirral Company and certain appliances and fittings of the West Cheshire Water Company Limited upon the terms and subject to the conditions therein contained :

And whereas by an agreement made the sixth day of November one thousand nine hundred and twenty-four between the Wirral Company of the one part and the mayor aldermen and burgesses of the county borough of Birkenhead of the other part provision was made for the sale by the Wirral Company to the said mayor aldermen and burgesses of certain properties rights and powers of the Wirral Company other than the said wells boreholes lands rights and works of the Wirral Company :

And whereas it is expedient that the supply of water in the area of the Company should be under the control of a public authority and for that purpose that a water board consisting of representatives of the before-mentioned councils should be incorporated and empowered to acquire the undertaking of the Company and

the said works lands and rights of the Wirral Company and to supply and distribute water throughout the limits defined in this Act : A.D. 1925.
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And whereas estimates have been prepared for the purposes hereinafter mentioned in respect of which borrowing powers are conferred upon the Board by this Act and such estimates are as follows :—

	£
For new mains and extensions of mains. - - - - -	110,000
For softening plant at the Prenton pumping station - - - - -	35,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed by the urban district council of Bebington and Bromborough and the urban district council of Ellesmere Port and Whitby and the approval of the Minister of Health has been obtained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the West Cheshire Short title. Water Board Act 1925.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Establishment of Board.

Part III.—Acquisition of undertaking of the Company and the Wirral works.

Division of
Act into
Parts.

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Part IV.—Works and lands.

Part V.—Supply of water.

Part VI.—Finance.

Part VII.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say):—

- (1) Section 12 of the Commissioners Clauses Act 1847 and the provisions of that Act with respect to the following matters (namely):—

The contracts to be entered into and the deeds to be executed by the commissioners;

The liabilities of the commissioners and legal proceedings by or against the commissioners;

- (2) The Waterworks Clauses Act 1847 except the words “with the consent in writing of the owner” or reputed owner of any such house or of the “agent of such owner” in section 44 and except sections 75 to 83 of the Waterworks Clauses Act 1847:

Provided that section 35 of the Act in its application to the Board shall be read and construed as if the words “one-sixth part” and “five successive years” were substituted therein for the words “one-tenth part” and “three successive years” respectively;

- (3) The Waterworks Clauses Act 1863; and

- (4) The Lands Clauses Acts with respect to the purchase and taking of lands by agreement.

Interpretation.

4. The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that for the purposes of this Act the respective expressions “the commissioners” “the undertakers” and “the promoters of the undertaking” in the provisions of the Commissioners Clauses Act 1847 the Waterworks Clauses Acts

1847 and 1863 and the Lands Clauses Acts as incorporated with this Act mean the Board : A.D. 1925.
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And in this Act unless the subject or context otherwise requires—

“ The Board ” means the West Cheshire Water Board incorporated by this Act ;

“ The clerk ” means the clerk to the Board ;

“ The treasurer ” means the treasurer of the Board ;

“ The Bebington and Bromborough Council ” means the urban district council of Bebington and Bromborough ;

“ The Ellesmere Port and Whitby Council ” means the urban district council of Ellesmere Port and Whitby ;

“ The Wirral Council ” means the rural district council of Wirral ;

“ The Company ” means the West Cheshire Water Company ;

“ The Wirral Company ” means the Wirral Waterworks Company ;

“ The scheduled agreement ” means the agreement set forth in the schedule to the West Cheshire Water Act 1924 ;

“ The limits of supply ” means the limits of the Board for the supply of water which limits are set forth in the section of this Act of which the marginal note is “ Limits of supply ” ;

“ Constituent authority ” means the council of any of the districts authorised to appoint a member or members of the Board ;

“ Constituent area ” in relation to a constituent authority means the whole or portion (as the case may be) of the district of the authority which is included within the limits of supply ;

“ Assessable value ” in relation to a constituent area means in the case of an urban district the value of the property in the constituent area as ascertained for the purpose of assessment to the general district rate and in the case of a rural district the value of the property in the portion of the constituent area within the limits of supply as ascertained for the

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purpose of assessment to a separate rate levied in respect of special expenses within the meaning of the Public Health Act 1875 subject in regard to the properties mentioned in paragraph (b) of subsection (1) of section 211 and in section 230 of the said Act (as respectively amended by subsequent Acts) to the reduction provided for in the said paragraph and section but not subject to any reduction under paragraph (a) of subsection (1) of the said section 211;

“The undertaking of the Company” includes all wells waterworks reservoirs mains pipes apparatus machinery plant (fixed and movable) and other works and conveniences with all the lands and buildings estates powers rights interests easements privileges choses in action books writings plans drawings specifications chattels and effects and other real and personal estate property assets and effects vested in or belonging to or had or enjoyed by the Company on the day of transfer for the purposes of or in respect of their undertaking for the supply of water but shall not include cash in hand or with the bankers of the Company the contingency and renewal fund of the Company or such sums of money as may be due to the Company in respect of water rates or water rents or other debts owing to or accruing due to the Company prior to or on the day of transfer and recoverable by the Company on revenue account in accordance with the provisions of the section of this Act of which the marginal note is “Provisions as to receipts and outgoings”;

“The Wirral works” means—

(a) The wells boreholes pumping station and works constructed by the Wirral Company at Prenton in the county of Chester;

(b) The reservoirs and rising main constructed in connection therewith;

(c) The lands edged yellow and the mains coloured red on the plan signed by John Wells

Wainwright Hopkins Esquire the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have been deposited in the Parliament Office of the House of Lords and the Private Bill Office of the House of Commons and with the Wirral Company and the Bebington and Bromborough Urban District Council the last named copy to be deposited with the Board on their formation); and

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(d) All rights powers and privileges of the Wirral Company to take or receive water from the said wells boreholes pumping station works reservoirs rising main and lands;

“The day of transfer” means—

(a) the quarter day next following the day three months after the date of the Royal Assent to this Act; or

(b) the quarter day upon which or next following the day upon which the sale referred to in the recited agreement of the sixth day of November one thousand nine hundred and twenty-four is completed

whichever shall be the later or such other day as may be agreed upon between the Board and the Company;

“The undertaking” means and includes the waterworks of the Board and the works connected therewith vested in and transferred to them by or in pursuance of this Act and all waterworks which may hereafter be constructed or acquired under any of the powers contained in this Act;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or

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other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Board;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The revenues of the Board” includes the revenues of the Board from time to time arising from the undertaking or from any land or other property for the time being belonging to the Board and the money receivable by them from the constituent authorities and all rates and money which they are authorised to levy and collect within the districts of the constituent authorities under the powers of this Act.

PART II.

ESTABLISHMENT OF BOARD.

Establish-
ment of
Board.

5.—(1) A board to be called the “West Cheshire Water Board” shall be established for the purpose of managing and carrying on the undertaking and of supplying water within the limits of supply and generally for the purpose of carrying the powers of this Act into execution.

(2) The Board shall be a body corporate with a common seal having power to acquire and hold land for the purposes of this Act without licence in mortmain.

(3) The constitution of the Board shall subject to alteration by the Minister of Health as hereinafter provided be as follows :— A.D 1925.

Five members to be appointed by the Bebington and Bromborough Council;

Five members to be appointed by the Ellesmere Port and Whitby Council;

Five members to be appointed by the Wirral Council :

Provided that if within three months after the passing of this Act the rural district council of Chester shall so desire and of such desire shall give notice in writing to the clerk then the said council shall become a constituent authority entitled to appoint one member of the Board subject to alteration as hereinafter provided.

(4) The chairman of the Board shall be appointed by the Board but need not be appointed from the members of the Board. A co-opted chairman shall be deemed to be a member of the Board.

(5) The Board may pay to the chairman such salary as the Board may determine.

(6) The vice-chairman of the Board shall be appointed by and from the members of the Board.

(7) The Board may if they think fit after the day of transfer from time to time co-opt as members of the Board persons who have been directors of the Company but the number of such members of the Board shall not at any time exceed three and no such members shall continue in office after the annual meeting of the Board in the year nineteen hundred and thirty-one.

6. Subject to the provisions of this Act the provisions of the First Schedule to this Act with respect to the constitution and proceedings of the Board shall have effect. Proceedings of Board.

7. On the application of any constituent authority the Minister of Health may at any time after giving notice of the application to the other constituent authorities and considering any objections or representations made by them by order alter the number and proportion of members to be appointed by the constituent authorities and may by such order alter the total number of members of the Board and may make any provisions incidental to or consequential on such alteration including an alteration in the number of members to form a quorum. Power to alter number of members.

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PART III.

ACQUISITION OF UNDERTAKING OF THE COMPANY
AND THE WIRRAL WORKS.Transfer of
undertaking
of Company
and Wirral
works.

8. On the day of transfer or on such later day as the price or consideration referred to in subsections (1) and (5) of the next succeeding section of this Act are paid and satisfied the undertaking of the Company and the Wirral works shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Board free from all mortgages debentures debenture stock charges debts and liabilities affecting the same.

Considera-
tion payable
to Company
and Wirral
Company.

9.—(1) The price or consideration to be paid by the Board to the Company shall be the sum of one hundred and ninety-four thousand pounds and shall be paid and satisfied on the day of transfer as to the sum of forty-four thousand pounds in cash and as to the sum of one hundred and fifty thousand pounds either in cash or at the option of the Board by the issue by the Board to the Company or to the Company's nominees of five per centum stock of the nominal value of one hundred and fifty thousand pounds created and issued by the Board under the provisions of this Act.

(2) If the price or consideration referred to in subsection (1) of this section is not paid by the Board on the day of transfer the Board shall pay to the Company interest at the rate of five and one half per centum per annum on so much of the said sum of one hundred and ninety-four thousand pounds as is payable in cash from the day of transfer to the actual day of payment.

(3) The Board shall also on the day of transfer pay to the Company—

(a) The amount of any capital moneys (including legal and engineering expenses) reasonably expended by the Company subsequent to the thirty-first day of December one thousand nine hundred and twenty-three in respect of the works referred to in the schedule to the scheduled agreement;

(b) The amount of any capital expenditure incurred by the Company subsequent to the twenty-second day of July one thousand nine hundred and

twenty-four with the consent referred to in the section of this Act of which the marginal note is "Maintenance of works &c. until transfer." A.D. 1925.

(4) The Board shall also pay to the Company interest upon the capital expenditure referred to in paragraphs (a) and (b) of subsection (3) of this section calculated from the date or dates on which such capital expenditure was made to the actual day of payment by the Board to the Company at such rate (not exceeding one per centum per annum over bank rate) as the Company shall have paid or be liable to pay in respect of any bank overdraft by means whereof such capital expenditure shall have been provided or if the same shall not have been provided by means of a bank overdraft then at the rate of five per centum per annum. Provided that such interest shall not be payable on any capital moneys expended on the provision of new softening plant and land in connection therewith under the provisions of section 21 (Substitution of means of softening) of the West Cheshire Water Act 1924 in respect of any period after the date on which such new softening plant is brought into use.

(5) The price or consideration to be paid by the Board to the Wirral Company shall be the sum of twenty thousand pounds and shall be paid on the day of transfer either in cash or at the option of the Board by the issue by the Board to the Wirral Company or to their nominees of five per centum stock of the nominal value of twenty thousand pounds created and issued by the Board under the provisions of this Act.

10.—(1) The Company shall sell and the Board shall purchase the movable stock in trade stores and other materials belonging to the Company on the day of transfer so far as the same may be suitable for use in connection with the undertaking and the Board shall pay to the Company the cost price thereof as shown by the books of the Company. Purchase of fittings &c. of Company and West Cheshire Water Company Limited.

(2) The West Cheshire Water Company Limited (in this section referred to as "the limited company") shall sell and the Board shall purchase the stocks of pipes valves hydrants and other fittings belonging to the limited company on the day of transfer so far as the same may be suitable for use in connection with the undertaking and the Board shall pay to the limited company the cost price thereof as shown by the books of the limited company.

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(3) Any difference which may arise between the Board and the Company or the limited company under subsections (1) or (2) of this section shall be referred to an arbitrator to be appointed (failing agreement between the parties concerned) by the President for the time being of the Society of Parliamentary Agents and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such reference.

(4) On the day of transfer the Board shall pay to the limited company the sum of one thousand five hundred pounds by way of compensation for loss of profit and for loose tools and apparatus in connection with the supply of meters and fittings within the limits of supply and the execution of work in connection therewith. After the day of transfer the limited company shall not within the limits of supply sell furnish repair or alter any pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings or execute any work in connection therewith which may be within the powers of the Board under the section of this Act of which the marginal note is "Power to supply fittings."

Receipt for
purchase
money &c.

11.—(1) The receipt in writing of three directors of the Company or the Wirral Company for any money or stock paid or delivered to the Company or the Wirral Company as the case may be shall effectually discharge the Board from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Board are unable to obtain any such receipt from the directors of the Company or the Wirral Company they may pay the money due to such company into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Board by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of such company.

(2) In case the Board are for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any stock ought to be issued in pursuance of a nomination made by the Company or the Wirral Company under the section of this Act of which the marginal note is "Consideration payable to

Company and Wirral Company" they may deposit the certificate for such stock in the High Court under any Act for the time being in force for the relief of trustees and every such deposit shall effectually discharge the Board from all further liability with respect to such stock. A.D. 1925.

12. The production of a King's Printer's or Royal Assent copy of this Act duly stamped together with a receipt for the price or consideration purporting to be signed by three directors of the Company or the Wirral Company as the case may be or in either case by the cashier of the Bank of England shall (unless it be proved that the price or consideration has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Board of the undertaking of the Company where the stamp and receipt relate to the price or consideration for that undertaking and of the Wirral works where the stamp and receipt relate to the price or consideration for those works. Evidence
of transfer.

13.—(1) The Company shall maintain and carry on their undertaking as heretofore in the ordinary course of business until the day of transfer and shall keep and on the day of transfer deliver up the same to the Board in fair working order as a going concern but they shall not expend any capital moneys incur any new capital expenditure or carry out any new permanent works without the consent of an engineer to be appointed by agreement between the Company and the Bebington and Bromborough Council the Ellesmere Port and Whitby Council and the Wirral Council or (after the establishment of the Board) between the Company and the Board or failing agreement by the President of the Institution of Civil Engineers. Provided that such consent shall not be necessary in the case of the capital moneys referred to in paragraph (a) of subsection (3) of the section of this Act of which the marginal note is "Consideration payable to Company and Wirral Company." Mainten-
ance of
works &c.
until
transfer.

(2) The Wirral Company shall duly maintain the Wirral works (as the works may be altered renewed or improved by the works referred to in the schedule to the scheduled agreement) in the ordinary course of business until the day of transfer and shall keep and on the day of transfer deliver up the same to the Board in fair working order.

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Books
records &c.
to be
handed
over.

14.—(1) The Company and the Wirral Company shall on the day of transfer deliver to the Board all books deeds agreements engineers' reports plans descriptions of works vouchers letters books and records of the business and proceedings of the Company and the Wirral Company which may be necessary for the management by the Board of the undertaking of the Company or the Wirral works as the case may be but they shall not be required to hand over the minute books of the directors of the Company and the Wirral Company or any books and papers relating exclusively to the shareholders in and the constitution of the said Companies.

(2) The Company and the Wirral Company their solicitors and agents shall be entitled at all reasonable times to have access to and to take copies of all documents delivered to the Board under the provisions of subsection (1) of this section so far as the same may be necessary for the purposes of the Company and the Wirral Company or the winding up thereof.

Provisions
as to
receipts and
outgoings.

15. The Company shall be entitled to all rates rents profits and sums of money and shall discharge and pay all outgoings and liabilities in respect of the undertaking of the Company accruing due up to or which shall have accrued due or become payable prior to or on the day of transfer and the Board shall be entitled to all rates rents profits and sums of money and shall discharge and pay all outgoings and liabilities in respect of the undertaking of the Company accruing due as from or which shall accrue due or become payable after the day of transfer and where necessary for the purposes of this section all revenues and outgoings shall be apportioned between the Company and the Board. Provided that all water rates meter rents and other charges payable in advance in respect of any period subsequent to the day of transfer shall belong to the Board and the Company shall pay to the Board the amount of such rates rents and charges as have been received by them prior to the day of transfer and all rates rents profits and sums of money accruing to the Company on the day of transfer in respect of the undertaking of the Company but not at that date actually due or payable shall when due be recoverable by the Board who shall pay to the Company the proportion of all such rates rents profits and sums of money so recovered which shall be attributable to the period prior to the day of transfer.

16. As from the day of transfer the Acts and Orders and parts thereof specified in the Second Schedule to this Act shall by virtue of this Act be repealed (subject to the provisions of this Act) save the sections of the said Acts and Orders which are set out in the Third Schedule to this Act all which provisions and sections are hereby excepted from repeal and as far as they respectively are in force on the day of transfer shall (subject as hereinafter provided) remain in force as if this Act had not been passed the Board being substituted in and in relation to the said sections for the Company and this repeal or anything in this Act shall not prejudicially affect any estate right or interest protected or preserved by any of those sections but nothing in this Act shall extend any provision of any of those sections to the Wirral works or to any works by this Act authorised to be made.

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Partial
repeal of
Acts and
Orders.

17. Notwithstanding the provisions of the section of this Act of which the marginal note is "Partial repeal of Acts and Orders" and notwithstanding the transfer to the Board of the undertaking of the Company the following provisions shall have effect (that is to say):—

Savings
from effect
of repeal of
Acts and
transfer of
under-
taking.

- (1) If on the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of such transfer but the same may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed :
- (2) All rates rents and charges in connection with the undertaking of the Company which have been lawfully made charged or imposed and which on the day of transfer are due or if this Act had not been passed would have accrued due shall continue in force and be due and payable and may be collected recovered or enforced as if this Act had not been passed Provided that if the same are not payable until after the day of transfer the same shall be recoverable by the Board in lieu of the Company :

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(3) Except as in this Act or in the scheduled agreement otherwise expressly provided all agreements conveyances contracts deeds and other instruments entered into or made with or by the Company and in force on the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Board and may be enforced as fully and effectually as if instead of the Company the Board had been a party thereto The Board shall indemnify the Company against all claims and demands under such agreements conveyances contracts deeds and other instruments :

(4) All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall be admitted in evidence in respect of the same or the like matter for or against the Board.

Compensa-
tion to
directors
&c. of
Company.

18. The Board shall on the day of transfer pay to the Company by way of compensation for the loss of office sustained by the directors managing director and auditors of the Company the sums referred to in clause 16 of the scheduled agreement.

Compensa-
tion to
officers and
servants.

19.—(1) Every officer and servant (other than directors managing director and auditors) in the regular employment of the Company or the Wirral Company in connection with their respective undertakings immediately before the day of transfer (in this section referred to as “an existing officer” and “an existing servant”) shall as from the day of transfer become an officer or servant of the Board and shall hold his office or situation by the same tenure and upon like terms and conditions under the Board as he would have held the same under the Company or the Wirral Company if the sale of the undertaking of the Company or the Wirral works as the case may be had not taken place and while performing the same duties shall receive not less salaries wages or pay than he would have been entitled to from the Company or the Wirral Company if the sale of the undertaking of the Company or the Wirral works as the case may be had not taken place.

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(2) Every existing officer and existing servant shall perform such duties in connection with the undertaking as they may be required to perform by the Board.

(3) The Board may abolish the office or situation of any existing officer or existing servant which they deem unnecessary and any existing officer or existing servant required to perform duties such as are not analogous or which are an unreasonable addition to those which as an officer or servant of the Company or the Wirral Company he was required to perform may relinquish his office or service.

(4) Every existing officer or existing servant whose office is so abolished or who so relinquishes his office or service as aforesaid or who otherwise suffers any direct pecuniary loss in consequence of the undertaking of the Company or the Wirral works as the case may be being transferred to the Board shall be entitled to be paid by the Board compensation for such pecuniary loss regard being had to the conditions on which his appointment was made the nature of his office or employment the duration of his services and any other circumstances affecting the case.

(5) Subject to the provisions of this Act the provisions contained in section 120 of the Local Government Act 1888 relating to compensation to existing officers shall apply to any claim for compensation by an existing officer or an existing servant as if in that section references to an arbitrator appointed by the Minister of Health were substituted for references to the Treasury and as if references to the Board and the Board's funds were substituted for references to the county council and county fund and as if in subsection (7) of that section the expression "county council" included any local authority as defined by the Local Loans Act 1875 water board or water company.

(6) If within a period of five years after the day of transfer the services of any existing officer or existing servant are dispensed with by the Board because his services are not required and not on account of misconduct or incapacity or the salary of any such officer or servant is reduced on the ground that his duties have been diminished in consequence of the undertaking of the Company or the Wirral works as the case may be being transferred to the Board the officer or servant shall be deemed to have

A.D. 1925. — suffered direct pecuniary loss in consequence of the transfer of the undertaking of the Company or the Wirral works as the case may be to the Board.

(7) In computing the time of service of any existing officer or existing servant for the purpose of determining the compensation to which he is entitled under the foregoing provisions the period during which he has been in the service of the Company or the Wirral Company as the case may be shall be included and where any existing officer or existing servant was temporarily absent from his employment whilst serving in His Majesty's forces during the recent war such period of temporary absence shall be reckoned as service under the Company or the Wirral Company as the case may be provided he was in their employment immediately before and after such service.

(8) In the event of the Board obtaining authority to establish a superannuation scheme for their officers and servants they shall use their best endeavours to secure that regard shall be had to the periods referred to in subsection (7) of this section for the purpose of determining any superannuation allowance to which any existing officer or existing servant who enters the service of the Board is entitled.

Application
to Board of
certain pro-
visions of
Acts
relating to
Wirral
Company.

20. As from the day of transfer the sections of the Wirral Waterworks Acts 1859 and 1911 which are set out in the Fourth Schedule to this Act so far as they relate to the Wirral works shall apply to the Board the Board being substituted in and in relation to the said sections for the Wirral Company :

Provided that nothing in section 5 (Subsidiary works) of the Wirral Waterworks Act 1911 shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them in the exercise of the powers conferred by that section.

Winding
up and
dissolution
of Com-
pany and
Wirral
Company.

21.—(1) So soon as conveniently may be after the transfer of the undertaking of the Company to the Board the affairs of the Company shall be wound up and for that purpose the directors of the Company then in office and the survivors of them shall continue in office without re-election and may and shall exercise all powers necessary for the distribution of the moneys and stock paid or

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issued to the Company by the Board and the other assets of the Company and for winding up the affairs of the Company and when and so soon as such moneys stock and assets have been distributed and their affairs have been wound up the Company shall by virtue of this Act be dissolved.

(2) So soon as conveniently may be after the transfer of the Wirral works to the Board and the sale of the properties rights and powers of the Wirral Company (other than the Wirral works) to the mayor aldermen and burgesses of the county borough of Birkenhead in pursuance of the recited agreement of the sixth day of November one thousand nine hundred and twenty-four has been completed the affairs of the Wirral Company shall be wound up and for that purpose the directors of the Wirral Company then in office and the survivors of them shall continue in office without re-election and may and shall exercise all powers necessary for the distribution of the moneys and stock paid or issued to the Wirral Company and the other assets of the Wirral Company and for winding up the affairs of the Wirral Company and when and so soon as such moneys stock and assets have been distributed and their affairs have been wound up the Wirral Company shall by virtue of this Act be dissolved.

(3) If the number of directors of either the Company or the Wirral Company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the Company or the Wirral Company as the case may be to fill the vacancy or vacancies so caused.

PART IV.

WORKS AND LANDS.

22. From and after the day of transfer the Board may subject to the provisions of this Act maintain repair and renew the waterworks reservoirs and plant to be transferred to and vested in them under the provisions of this Act and may extend from time to time the mains and pipes laid within the limits of supply and may use and employ such works reservoirs plant mains and pipes

Power to maintain transferred works.

A.D. 1925. — for the purposes of the undertaking and for the supply of water within the limits of supply or under the provisions of this Act and the Board shall in respect of those works reservoirs plant mains and pipes and the maintenance and future use regulation and enlargement thereof have the powers and be subject to the provisions of this Act and the Acts incorporated wholly or in part with this Act and the same shall be deemed to and shall be and form part of the undertaking.

Limiting
powers of
Board to
abstract
water.

23. The Board shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Provisional Order confirmed by Parliament.

Temporary
discharge
of water
into streams
&c.

24.—(1) For the purpose of constructing altering repairing emptying cleansing or examining any reservoir tank aqueduct line of pipes or other work for the time being belonging to them the Board may cause the water in any such work to be temporarily discharged into any available surface water sewer stream or watercourse Provided that any water so discharged shall so far as may be reasonably practicable be free from mud or solid or offensive matter.

(2) In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of such compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Powers for
protection
of waters
and water-
works.

25.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Board may by agreement purchase take on lease and acquire any lands in or over which any waters which the Board are for the time being authorised to collect impound take use divert or appropriate arise or flow and may hold such lands so long as they shall deem it necessary or expedient for those purposes Provided that the Board shall not create or permit the creation or continuance of any nuisance on any lands

acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking. A.D. 1925.

(2) The Board may in and upon any lands so acquired by them construct and lay down drains sewers water-courses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Board are empowered to take from being polluted and the Board may for the purposes aforesaid carry any such drains sewer or watercourse under across or along any street or road within any area in or through which any waters which may be taken by the Board arise or flow subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The powers conferred by this section shall not authorise the grant or enclosure of common without the consent of the Minister of Agriculture and Fisheries.

26. The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of their waterworks with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into such works. Power to agree as to drainage of lands &c.

27. The Board in addition to any land which they may acquire as part of the undertaking of the Company or the Wirral works may from time to time by agreement purchase take on lease or otherwise acquire and hold for the purposes of the undertaking any lands (not exceeding in the whole ten acres) or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Board may deem necessary for those purposes and the Board on any lands acquired under this section may execute for the purposes of or in connection with the undertaking Power to take additional lands by agreement.

A.D. 1925. any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847. Provided that the Board shall not create or permit a nuisance on such lands and shall not erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking.

Dwelling-houses for persons in Board's employ.

28. The Board may purchase or take on lease dwelling-houses for persons employed by them for the purposes of the undertaking and may erect maintain and let dwelling-houses for and to such persons upon any lands for the time being belonging to the Board for the purposes of the undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Board for the purposes of the undertaking.

Power to retain sell &c. lands.

29. Notwithstanding anything in the Lands Clauses Acts the Board may retain hold and use for the purposes of the undertaking for such time as they think fit any lands for the time being belonging to them and may from time to time sell lease exchange or otherwise dispose of the same in such manner for such consideration and on such terms and conditions as they think fit and may execute and do any deed act or thing proper for effectuating any sale lease exchange or disposition and on any such sale lease exchange or disposition may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale lease exchange or disposition subject to such reservations accordingly and may also make any such sale lease exchange or disposition subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

As to softening of water.

30. All water supplied by the Board from the Hooton pumping station to consumers within the limits of supply shall be softened or so mixed with other water that it shall not exceed ten degrees of hardness according to Clark's scale and the Board may make such arrangements and generally do all such acts as may be necessary for that purpose.

PART V.

A.D. 1925.

SUPPLY OF WATER.

31. The limits of this Act for the supply of water by the Board shall be— Limits of supply.

- (a) The urban district of Bebington and Bromborough;
- (b) The urban district of Ellesmere Port and Whitby;
- (c) The parishes of Arrow (otherwise Arrowe) Barnston Brimstage Burton Childer Thornton Eastham Gayton Great Sutton Heswall with Oldfield Hooton Irby Landican Ledsham Little Sutton Ness Noctorum Pensby Poulton cum Spital Prenton Puddington Raby Storeton Thingwell (otherwise Thingwall) Thornton Hough Thurstaston Upton Willaston and Woodchurch in the rural district of Wirral; and
- (d) The parishes of Capenhurst Chorlton Croughton Little Saughall Great Saughall Shotwick Little Stanney Stoke and Woodbank in the rural district of Chester.

32. As from the day of transfer or such later day as the price or consideration referred to in subsections (1) and (5) of the section of this Act of which the marginal note is "Consideration payable to Company and Wirral Company" are paid and satisfied so much of section 2 (Limits of Act) of the Wirral Waterworks Act 1859 as authorises the Wirral Company to supply water in any part of the limits of supply is hereby repealed. Repeal of Wirral Company's powers in limits of supply.

33. The water supplied by the Board need not at any time be delivered at a pressure greater than that afforded by gravitation from the service reservoir or tank from which the supply is given. Limit of pressure.

34. The Board may require that dwelling-houses erected after the passing of this Act at a higher level than fifty feet below the service reservoir or tank from which they are supplied shall be provided with cisterns holding forty-eight hours' supply and the Board shall not be bound to supply such houses until such cisterns are provided. Cisterns.

A.D. 1925.

Rates for
supply of
water.
Domestic
purposes.

35.—(1) From and after the day of transfer the Board shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at such rates as the Board may from time to time determine not exceeding the rates per annum hereinafter specified (that is to say):—

Where the rateable value of the premises so supplied with water shall not exceed seven pounds at a rate not exceeding threepence per week;

Where such rateable value shall exceed seven pounds and shall not exceed twenty pounds at a rate per centum per annum not exceeding eleven pounds five shillings;

Where such rateable value shall exceed twenty pounds and shall not exceed forty pounds at a rate per centum per annum not exceeding ten pounds ten shillings;

Where such rateable value shall exceed forty pounds and shall not exceed eighty pounds at a rate per centum per annum not exceeding nine pounds fifteen shillings;

Where such rateable value shall exceed eighty pounds at a rate per centum per annum not exceeding nine pounds.

(2) The rateable value of any such premises shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list or poor rate such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the Board may in the case of any premises to which they furnish a supply of water charge for every watercloset beyond the first (for which no additional charge shall be made) a sum not exceeding seven shillings and sixpence per annum.

and for every fixed bath capable of containing not more than fifty gallons and for every bath capable of containing more than twenty gallons and not more than fifty gallons a sum not exceeding fifteen shillings per annum and for every bath capable of containing more than fifty gallons such sum as the Board may think fit. A.D. 1925.

(4) When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Board may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding thirty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

(5) Any sums charged under subsections (3) and (4) of this section shall be recoverable at the like dates and in the same manner as other water rates or charges leviable by the Board under this section can be recovered.

36.—(1) Where the rateable value of a house supplied with water does not exceed ten pounds or the house is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Board so determine pay the rate for the supply but the rate may be recovered from the occupier and may if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. Rates payable by owners of small houses.

(2) The provisions of section 73 of the Waterworks Clauses Act 1847 shall mutatis mutandis extend and apply to any payments made under the provisions of this section by the owner of any house and as if such first mentioned provisions applied in the case of any lease or agreement whether made before or after the passing of this Act.

37. The Board may supply water for other than domestic purposes on such terms and conditions as the Board think fit and may supply water by measure either Supply by measure.

A.D. 1925. — for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
measure.

38. The price to be charged for a supply of water by measure shall not exceed two shillings and threepence per thousand gallons.

Supply to
houses
partly used
for trade
&c.

39.—(1) The Board shall not be bound to supply with water otherwise than by meter (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse hospital asylum or sanatorium.

(2) Where water supplied by the Board to a farmhouse is used for farming purposes the Board may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Board to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by this Act.

Special
terms for
supplies to
caravans
shacks and
huts.

40.—(1) Notwithstanding anything in this or any other Act or Order relating to the Board contained a person shall not be entitled to demand or continue to receive from the Board a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Board to take a supply of water by meter and to pay to the Board such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Board by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by whom the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties. A.D. 1925.

41. The Minister of Health may if he thinks fit from time to time on the application of the Board or of a local authority having jurisdiction within the limits of supply by order vary either by way of increase or decrease the rates and charges for the supply of water which the Board are by this Act authorised to charge : Revision of rates.

Provided that the rates and charges prescribed in any such order shall be of such amounts as in the opinion of the Minister will provide a reasonable sum as a contribution towards a reserve fund so long as such fund does not amount to the maximum prescribed by the section of this Act of which the marginal note is " Application of water revenue."

42. Notwithstanding the provisions of section 70 of the Waterworks Clauses Act 1847 the Board may from time to time by resolution declare that all or any of the rates rents and charges which they are by this Act authorised to demand and make shall commence and be payable at such time or times and be collected by the constituent authorities either together with or separately from the general district rate general expenses rate or other rate authorised to be levied by the constituent authorities or by such other persons and in such other manner as the Board may by any such resolution determine Provided nevertheless that nothing herein contained shall authorise the Board or any constituent authority to require the payment of any rate rent or charge under this Act more than three months in advance. Dates for payment of water rates &c.

43. The Board may if they think fit allow discounts or rebates to consumers of water in consideration of prompt payment of rates for the supply of water for domestic purposes not exceeding in any case five per centum Provided that such discounts or rebates shall be at the same rate under like circumstances to all consumers Provided also that if and so long as the Board allow such discounts or rebates notice of the Discount for prompt payment of water rates.

A.D. 1925. effect of this enactment shall be endorsed on every demand note for water rates.

Separate
communi-
cation pipes
may be
required.

44.—(1) The Board shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

(2) If the owner of any house supplied with water by the Board when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Board may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt.

(3) Provided that this section shall not apply in the case of any houses which at the date of the passing of this Act are supplied by means of the same communication pipe.

Mainten-
ance of
common
pipe.

45. Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Board in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Board.

Board to
connect
communi-
cation pipes
with mains.

46. Notwithstanding anything contained in any Act relating to the Board the Board shall have the exclusive right of executing any works on any of the water mains of the Board for connecting any communication or service pipes therewith and the Board shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Board execute on any such main (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) any work and supply all fittings and materials which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Board in so

doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt. A.D. 1925.

47. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board or be given personally at the office of the Board. Notice of discontinuance.

48.—(1) The Board may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Board are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Board may if they think fit after twenty-four hours' notice in writing enter the premises of or occupied by such person and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Board as the water rates in respect of the premises are recoverable.

(4) Any byelaws made by the Company under the provisions of the Act of 1884 and in force on the day of transfer shall continue in force until byelaws under this section shall have been made and confirmed.

49. Subject to the provisions of the Waterworks Clauses Act 1847 the Board may for the purpose of measuring the quantity of water supplied or preventing Meters &c. to measure water or

A.D. 1925. and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Board and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily stop up break up and interfere with public and private streets roads lanes footways courts passages tramways sewers pipes wires and apparatus :

detect
waste.

Provided that the Board shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
Board to
repair com-
munication
pipes.

50. If in the opinion of the Board any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Board are not under obligation to maintain it shall be lawful for the Board to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expenses incurred by the Board for the purpose of ascertaining the cause of injury or defect and executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Board from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. Provided that except in case of emergency the Board shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Power to
sell meters.

51. The Board may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary and otherwise) and conditions as they think fit.

Notice to
Board of

52. Before any person connects or disconnects any meter by means of which any of the water of the Board

is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Board of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Board and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

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connecting
or dis-
connecting
meters.

53.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Board or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Board shall (without prejudice to any other right or remedy for the protection of the Board) be liable to a fine not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained.

Injuring
meters &c.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Board or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Board the Board may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or other instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Board by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Board when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence

A.D. 1925. that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Inter-
ference
with valves
pipes and
fittings.

54. Every person who shall wilfully (without the consent of the Board) or negligently close or shut off any valve cock or other work or apparatus belonging to the Board whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Board) be liable to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Power to
supply
fittings.

55.—(1) The Board may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Board in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Board as the actual owners thereof:

Provided also as follows:—

(a) The Board shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(b) Every sum charged by the Board in respect of the provision of such fittings or the fixing repairing or removal thereof shall be clearly stated in every demand note delivered by the Board to the consumer; A.D. 1925.

(c) The total sums expended and received by the Board in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the undertaking for that year.

56. The Board by their agents or workmen after forty-eight hours' notice in writing under the hand of the manager of the undertaking or some other officer of the Board to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Board is laid or fixed and through or in which the supply of water is from any cause other than the default of the Board discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. Power to remove meters and fittings.

57. The Board may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation with this Act. Power to lay pipes in streets not dedicated to public use.

58.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the persons liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. Opening of ground by persons liable to maintain pipes &c.

(2) The Board may by agreement with any owner or occupier entitled or required to lay maintain repair

A.D. 1925. — or remove any communication pipe and for that purpose to open or break up any street execute such works on behalf of such owner or occupier and any expenses incurred by the Board shall be repaid by the owner or occupier with whom the agreement is made.

Contracts
for supply-
ing water
in bulk.

59. The Board may enter into and carry into effect agreements with any authority water board company or person for the supply of water beyond the limits of supply to any such authority board company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any authority water board company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

For pro-
tection of
certain
railway
companies.

60. For the protection of the London Midland and Scottish Railway Company the Great Western Railway Company and the London and North Eastern Railway Company (each of whom is in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the railway company and the Board have effect (that is to say):—

The powers of the sections of this Act of which the marginal notes are respectively "Meters &c. to measure water or detect waste" and "Power to lay pipes in streets not dedicated to public use" shall not be exercised with respect to any street belonging to the railway company except with the consent of the railway company. The said consent shall not be unreasonably withheld and if any difference arises between the railway company and the Board as to whether such consent is in any case unreasonably withheld the difference shall be determined by an arbitrator to be agreed upon by the railway company and the Board or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

61. For the protection of the Manchester Ship Canal Company (in this section referred to as "the canal company") the following provisions shall unless otherwise agreed in writing between the canal company and the Board have effect (that is to say):—

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 —
 For pro-
 tection of
 Manchester
 Ship Canal
 Company.

- (1) The powers of the section of this Act of which the marginal note is "Meters &c. to measure water or detect waste" shall not be exercised with respect to any street road lane footway court or passage (all of which are in this section included in the expression "street") situate upon any lands at the date of the passing of this Act belonging or leased to the canal company but the canal company shall afford the Board all reasonable facilities for preventing and detecting waste of water on such lands:
- (2) The powers of the section of this Act of which the marginal note is "Power to lay pipes in streets not dedicated to public use" shall not be exercised with respect to any street situate on such portion of the lands at the date of the passing of this Act belonging or leased to the canal company as is or may be devoted to trade purposes except with the consent of the canal company:
- (3) The powers of the section of this Act of which the marginal note is "Power to lay pipes in streets not dedicated to public use" shall not be exercised with respect to any street situate on such portion of the lands at the date of the passing of this Act belonging or leased to the canal company as is or may be devoted to purposes other than trade purposes, except with the consent of the canal company but such consent shall not be unreasonably withheld:
- (4) The powers of the sections of this Act of which the marginal notes are respectively "Meters &c. to measure water or detect waste" and "Power to lay pipes in streets not dedicated to public use" shall not be exercised with respect to any street situate on lands acquired by or leased to the canal company after the date of the passing of this Act except with the

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consent of the canal company but such consent shall not be unreasonably withheld :

- (5) If any difference arises between the canal company and the Board as to whether the consent referred to in subsections (3) and (4) of this section has been unreasonably withheld or in any way arising out of this section it shall be determined by an arbitrator to be agreed upon between the canal company and the Board or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

PART VI.

FINANCE.

Creation of stock as consideration for transfer.

62.—(1) On the passing of this Act there shall by virtue of this Act be created so much stock to be called West Cheshire Water Board redeemable five per centum stock (in this section called “water board stock”) as may be necessary to give effect to the section of this Act of which the marginal note is “Consideration payable to Company and Wirral Company.”

(2) Such water board stock shall be transferable in multiples of one pound and shall be entitled to interest at the rate of five pounds per centum per annum as from the day of transfer payable upon the first day of April and the first day of October in each year until redemption and shall be redeemed by the Board at par at the expiration of fifty years from the day of transfer or (at the option of the Board) at the expiration of a period equivalent to that prescribed by subsection (1) of the section of this Act of which the marginal note is “Power to borrow” in respect of the purposes (a) in that subsection mentioned but the Board may redeem the water board stock or any part thereof at par at any time after the expiration of five years from the day of transfer on giving not less than three months’ previous notice in writing to the holders thereof of their intention to redeem the same or may purchase such stock or any part thereof by agreement with the holders at any time.

(3) Such water board stock and all interest accrued or to accrue due thereon shall be charged on the revenues of the Board. A.D. 1925.
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(4) The regulations of the Local Government Board or the Minister of Health made in pursuance of Part V. of the Public Health Acts Amendment Act 1890 and for the time being in force shall subject to the provisions of this Act apply to the creation issue transfer and redemption of and other dealings with the stock created and issued under this section as if the same were stock duly created and issued by the Board under the section of this Act of which the marginal note is "Board may issue stock" Provided that stock created and issued under this section shall be deemed to have been created and issued with the consent of the Minister of Health And provided also that the amounts of the several contributions from the revenues of the Board payable in each year for the redemption and extinction or purchase and extinction of stock issued under this section shall be determined by the provisions of paragraph (b) of Article 14 (3) of the Stock Regulations 1891 and the rate per centum per annum for the purposes of those provisions shall be three pounds ten shillings or such other rate as the Minister of Health may from time to time approve.

(5) Trustees executors administrators and all persons legally holding existing shares in the capital of the Company or the Wirral Company in any representative or fiduciary capacity may hold water board stock for such stock in the capital of the Company or the Wirral Company under the powers of this Act and are hereby indemnified for all acts bonâ fide done by them in pursuance of the provisions of this Act.

(6) The Board shall not at any time create or issue any mortgage stock annuity or other security ranking either as to principal or interest in priority to such water board stock but any such mortgage stock annuity or other security may be issued so as to rank *pari passu* with such water board stock.

63.—(1) The Board may from time to time borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all Power to borrow.

A.D. 1925. moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely):—

1	2	3
(a) For the purchase of the undertaking of the Company and the Wirral works and for defraying the costs and expenses incident to such purchase and to the transfer of the said undertaking and works to the Board (other than the costs of this Act) and for the payment of any other sums payable by the Board to the Company or the Wirral Company (other than the sum referred to in paragraph (b) of this subsection).	The sum requisite.	Fifty years from the date or dates of borrowing.
(b) For the purchase of the movable stock in trade stores pipes valves hydrants and other fittings belonging to the Company and the West Cheshire Water Company Limited and for the payments to be made under the provisions of the section of this Act of which the marginal note is "Purchase of fittings &c. of Company and West Cheshire Water Company Limited."	The sum requisite.	Thirty years from the date or dates of borrowing.
(c) For new mains and extensions of mains.	£ 110,000	Forty years from the date or dates of borrowing.
(d) For softening plant at the Prenton pumping station.	35,000	Thirty years from the date or dates of borrowing.
(e) For working capital	5,000	Ten years from the date or dates of borrowing.
(f) For paying any sums payable by the Board under the section of this Act of which the marginal note is "Costs of Act &c."	The sum requisite.	Five years from the date of the passing of this Act.

(2) (a) The Board may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred

to as "the prescribed period") as may be prescribed A.D. 1925.
 by the Minister of Health. —

(3) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of the interest thereon the Board may mortgage or charge the revenues of the Board.

64. The Board may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others and for the purposes of such issue under the Local Loans Act 1875 the Board shall be deemed a local authority under that Act and the revenues of the Board shall be deemed to be the local rate as defined by the said Act Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act. Mode of raising money.

65. The Board shall be deemed to be an urban authority within the meaning of Part V. of the Public Health Acts Amendment Act 1890 and to have adopted that Part of that Act and the Board may exercise their borrowing powers by the creation and issue of stock in the manner by that Act provided and subject to the provisions therein contained and the regulations made thereunder Provided that the Minister of Health may by order make all such variations additions amendments and adaptations of all or any of the provisions contained in that Part of the said Act or in the regulations made thereunder as may be necessary to make the same applicable. Board may issue stock.

66. All mortgages debentures annuity certificates and stock granted or issued by the Board under any statutory borrowing power and the interest thereon shall be charged indifferently on all the revenues of the Board and shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the granting or issue of the security or on any other account whatsoever. Mortgages &c. to rank pari passu.

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Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

67. The following sections of the Public Health Act 1875 with any necessary modifications shall extend and apply to mortgages granted under this Act :—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

Mode of
payment off
of money
borrowed.

68. The Board shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months of the date of borrowing.

Sinking
fund.

69.—(1) If the Board determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual or half-yearly sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal annual or half-yearly sums as with accumulations at the rate of three pounds ten shillings per centum per annum (or such other rate as the Minister of Health may from time to time authorise) will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall (subject to the

provisions of this Act) unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments. A.D. 1925.

(3) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall subject to the provisions of this Act pay into the fund each year out of the revenues of the Board and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Board.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(6) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such

A.D. 1925. — increased payments to the sinking fund out of the revenues of the Board as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Board shall increase the payments to such extent as the Minister of Health may direct.

(7) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Board with the consent of the Minister of Health may determine.

Power to
use sinking
fund
instead of
borrowing.

70. Where the Board are authorised by any statutory borrowing power to raise money they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of moneys borrowed by the

Board Provided that when exercising the powers of A.D. 1925.
this section the Board shall—

- (a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;
- (b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;
- (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

71. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by the Board of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection
of lender
from
inquiry.

72. The Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Board shall be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Board not
to regard
trusts.

A.D. 1925.

Appoint-
ment of
receiver.

73.—(1) Any mortgagee of the Board by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

74.—(1) The Board shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

75.—(1) Notwithstanding anything contained in any Act or Order the Board may if they think fit establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

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Consoli-
dated loans
fund.

- (a) all moneys borrowed by the Board whether by the issue of stock or other security together with any moneys borrowed without security in connection with the exercise of statutory borrowing powers;
- (b) all moneys of a capital nature received by the Board whether from the sale of capital assets or otherwise except such as are applied by the Board with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Board to comply with the terms and conditions as to repayment attaching to their several borrowing powers; and
- (d) a sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Board and remaining outstanding;

and there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Board as aforesaid before the date on which the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund (subject as hereinafter provided) shall be used or applied by the Board—

- (a) in the exercise of any duly authorised borrowing power by transfer of the required amount to the appropriate fund and account of the Board;
- (b) in the redemption of stock or any other securities issued by the Board the purchase of stock for extinction or the repayment of any moneys borrowed by the Board; or
- (c) in the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of the statutory borrowing powers of the Board and remaining outstanding:

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Provided that any moneys of the consolidated loans fund pending use or application as aforesaid may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund.

(3) The powers conferred by this section shall not be put into operation by the Board except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Investment
of and
payments
into sinking
fund.

76. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Board are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Board (that is to say):—

- (1) The Board may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities the Board being at liberty from time to time to vary and transpose such investments:
- (2) The appropriate yearly sums and the accumulations of the said yearly sums shall be paid and provided out of the revenues of the Board and any interest dividends and annual proceeds arising from the investment of the said yearly sums and the accumulations thereof shall be paid into and credited to the revenues of the Board.

Proceeds
of sale of
surplus
lands.

77. So long as any lands remain to be acquired by the Board under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied and any other moneys received on capital account under this Act the Board shall apply the same

in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health. Provided that—

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- (1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :
- (2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

78.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Board under the authority of this Act.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Board and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other

A.D. 1925. — than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Board shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Applica-
tion of
money
borrowed.

79. All moneys borrowed by the Board under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for working capital) to which capital is properly applicable.

Interest
on stock
and mort-
gages held
jointly.

80. Where more persons than one are registered as joint holders of any stock or mortgage of the Board any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Board by any other of them.

Receipt in
case of
persons
not sui juris.

81. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Board.

Apportion-
ment of
deficiency
in net
revenue of
Board.

82.—(1) Before the commencement of every financial year or half-year as they may determine or as soon thereafter as may be practicable the Board shall make or cause to be made an estimate of the probable revenue and expenditure (other than capital expenditure) which will be received and incurred respectively during the year or half-year as the case may be and if such estimate shows that there will be a deficiency in the net revenue of the Board for the year or half-year as the case may be the Board are hereby authorised and required in every case forthwith to apportion the sum required to meet such deficiency whether for satisfying past or future liabilities between the constituent authorities in proportion to the respective assessable values of their respective constituent areas.

(2) The Board shall issue precepts to the constituent authorities for the amounts apportioned in pursuance of this section and the constituent authorities respectively shall within three months from the receipt of such precepts or by instalments of such amounts and payable

within such times as may be specified in the precepts pay to the Board the amount so apportioned to them respectively. A.D. 1925.
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• (3) Such amounts respectively shall be paid by the Bebington and Bromborough Council and the Ellesmere Port and Whitby Council out of their respective district funds and general district rates and by the Wirral Council and by the rural district council of Chester (if they become a constituent authority of the Board) as special expenses within the meaning of section 229 of the Public Health Act 1875 chargeable on the contributory places in their district or districts in which a supply of water is furnished by the Board which fund rate and expenses are hereby charged with the payment of such amounts accordingly and the constituent authorities respectively are hereby authorised and required to make and levy any rate or issue any precept that may be necessary for providing the amounts payable as aforesaid.

(4) If any constituent authority fails to pay any amount so apportioned or any instalment of such amount as may have been specified in any such precept as the case may be within the time in which the same was payable the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of ten per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say) :—

- (a) The Board may sue the defaulting authority for the amount unpaid in any court of competent jurisdiction;
- (b) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the rate out of which the amount in arrear ought to have been paid by the defaulting authority such sum to be specified in the precept as in the opinion of the Board will be sufficient to pay the amount in arrear and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall

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have the like powers of assessing making levying and collecting rates and of issuing precepts and of requiring officers of the defaulting authority to account as the defaulting authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting authority.

(5) Any receiver appointed under this Act upon the application of the mortgagees of the Board shall be entitled to receive the amounts so apportioned by the Board between the constituent authorities and in case the Board at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the receiver shall in every such case be entitled to make such apportionment and to exercise all or any of the powers by this section conferred on the Board for recovering the amounts so apportioned.

Applica-
tion of
water
revenue.

83. The Board shall apply all money received by them on account of the revenue of the undertaking in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking (including the payment of any moneys payable by the Board in respect of any water supplied to them);

Secondly In payment of the interest on moneys borrowed by the Board for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Board;

Fourthly In extending improving and constructing (if the Board think fit) any works for the purposes of the undertaking;

Fifthly In providing further working capital (if the Board think fit);

Sixthly In providing a reserve fund (if the Board think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities

and accumulating the same at compound interest until the fund so formed amounts to a sum equal to one-tenth of the aggregate capital expended for the time being by the Board upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Board from the undertaking or to meet any extraordinary claim or demand at any time arising against the Board in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum;

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Lastly The surplus (if any) including the interest on the reserve fund when such fund amounts to the prescribed maximum shall after retention by the Board of such sum as is required for carrying on the undertaking be apportioned among and paid to the constituent authorities in proportion to the respective assessable values of their respective constituent areas and the sums paid to the Bebington and Bromborough Council and the Ellesmere Port and Whitby Council shall be carried to the credit of their respective district funds and general district rates and the sums paid to the Wirral Council and to the rural district council of Chester (if they become a constituent authority of the Board) shall be carried to the credit of the funds raised by them for the purposes of special expenses in respect of the contributory places in their district or districts in which a supply of water is furnished by the Board.

84. All expenses incurred by the Board in carrying into execution the provisions of this Act except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for may be paid out of the revenues of the Board.

Expenses
of execu-
tion of Act.

A.D. 1925. **85.** The Board may pay any reasonable expenses incurred by members of the Board in attending at conferences or meetings of the Board and committees of the Board.

Expenses of members.
Accounts and audit. **86.** The provisions of section 58 of the Local Government Act 1894 shall apply to the accounts of the Board and of their committees and officers and to the audit thereof and the accounts of the Board shall be made up to the thirty-first day of March in each year.

Temporary borrowing and suspension of sinking funds. **87.** The provisions of sections 3 and 4 of the Local Authorities (Financial Provisions) Act 1921 shall extend and apply to the Board as if they were a local authority within the meaning of the said Act.

PART VII.

MISCELLANEOUS.

Subsidiary powers of Board. **88.**—(1) The Board shall for the purposes of their powers and duties under this Act or otherwise with respect to the supply of water within the limits of supply have power:—

(a) To acquire hire erect and furnish such buildings and offices as they may require; and

(b) To purchase water in bulk.

And for the purpose of taking any supply of water purchased in bulk the Board may have and shall be entitled to exercise and enjoy outside the limits of supply all the rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to so much of any street or road outside the limits of supply as the Board shall require to break up for the purposes aforesaid as if the same were streets or roads within such limits.

(2) The Board shall also have power to promote or oppose any Bill in Parliament or any Provisional Order or special order and to prosecute or defend legal proceedings.

(3) The Board may pay the costs and expenses of and incidental to the promotion of or opposition to any

such Bill in Parliament or the opposition to any such Provisional Order or special order as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses
 Provided that:— A.D. 1925.

- (a) No expenses in relation to the promotion of any such Bill shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in two newspapers circulating in the districts of the constituent authorities such notice to be in addition to the ordinary notices required for summoning such meeting;
- (b) No further expenses shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and shall have received the approval of the Minister of Health.

89. The Board and each of the constituent authorities may enter into and carry into effect agreements with respect to the collection by such authority of the rates and charges which the Board are authorised to levy and take for and in connection with the supply of water within the district of such authority. As to collection of rates &c.

90. The Board may subscribe or make donations to infirmaries or hospitals and to convalescent homes and similar institutions and to any industrial exhibitions and to the benevolent and accident and sick funds of the employees of the Board and may for any of those purposes apply the revenues of the Board. Donations subscriptions &c.

91. The Board shall be deemed to be a local authority within the meaning of the Local Government and other Officers' Superannuation Act 1922. Superannuation of officers and servants.

92. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws Confirmation of byelaws.

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Extension
of sections
176 and 303
of Public
Health Act
1875 to
Board.

93.—(1) Sections 176 and 303 of the Public Health Act 1875 shall extend and apply to and the powers thereof may be exercised by the Board as if they were a local authority within the meaning of those sections and the limits of supply were their district and on the petition or application of the Board the Minister of Health may make such orders as they are by those sections empowered to make on the petition or application of a local authority.

(2) The provisions of this section shall be in addition to and not in derogation of any other powers conferred by this Act.

Incorporation of
sections 259
and 265 of
Public
Health Act
1875.

94. Sections 259 and 265 of the Public Health Act 1875 are hereby incorporated with this Act and shall extend and apply to the Board and the members officers and clerk of the Board as if the Board were a local authority within the meaning of such sections respectively and the purposes of this Act were purposes of the Public Health Act 1875.

Inquiries
by Minister
of Health.

95.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministers shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Board shall pay to the Minister of Health any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister for the services of such inspector.

Local taxation
returns.

96. The Board shall be deemed to be a local authority within the meaning of the Local Taxation Returns Acts 1860 and 1877.

Justices
not dis-
qualified.

97. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

98. Where the payment of more than one sum by any person is due under this Act or any other Act or Order relating to the Board any summons or warrant issued for any of the purposes of such Acts or Orders in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

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Several
sums in one
summons
or warrant.

99. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

100. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

101. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Board be paid to the treasurer of the Board and be by him carried to the credit of the revenue of the undertaking.

Application
of penalties.

102.—(1) Where any notice or demand under this Act requires authentication by the Board the signature of the clerk or other duly authorised officer of the Board shall be sufficient authentication.

Authentica-
tion and
service of
notices &c.

(2) Notices demands orders precepts and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order precept or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

103. The following provisions for the protection of the county council of the administrative county of Chester (in this section referred to as "the county

For pro-
tection of
Cheshire

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County
Council.

council") shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the Board and the county council apply and have effect with respect to the exercise of any powers of the Board under this Act in or affecting any main road or any county or main road bridge or approach thereto (that is to say) :—

(1) All mains pipes and works which may at any time hereafter be laid or executed in or affecting any such road or in upon or across any such bridge or approach shall be laid or executed at the expense of the Board in such position in or at the side thereof as the county council in writing under the hand of their surveyor may reasonably direct and in accordance with plans submitted to and approved by the county council previously to the execution of any such works and under the reasonable superintendence (if given) and to the reasonable satisfaction of the said surveyor. Provided that if the said surveyor shall not within fourteen days after the same shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof and the Board may forthwith proceed to execute the works specified without his superintendence. And provided further that if he shall express his disapproval thereof such works shall in case of difference be constructed in accordance with plans and sections to be approved by an arbitrator appointed in manner hereinafter provided :

(2) The Board shall not interfere with the structural part of any such bridge or the structural part of any such approach thereto without the consent in writing of the surveyor to the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine. Provided that this subsection shall not apply to any materials forming or being part of the roadways upon such bridge or approach :

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- (3) In the event of the county council at any time desiring to alter the level of deviate widen or reconstruct any such road (other than any such bridge or approach as is referred to in the next succeeding subsection of this section) in or along which any mains pipes or works of the Board shall have been laid the Board shall on receiving one month's notice in writing under the hand of the clerk or surveyor to the county council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter provided and the county council shall repay to the Board the expenses reasonably incurred by the Board in effecting any such alteration of the position of any such mains pipes or works :
- (4) In the event of any such bridge or approach under in or over which any such mains pipes or works of the Board are laid being removed altered repaired or rebuilt the Board shall at their own expense on receiving one month's notice in writing from the county council alter the position of such mains pipes or works as aforesaid and place the same to the reasonable satisfaction of the county council and the county council shall during such removal alteration repair or re-building at the cost of the Board afford all reasonable facilities for temporarily carrying such mains pipes and works so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains pipes or works :
- (5) All works shall be so executed by the Board as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or approach and the Board shall not break up at any one time a greater consecutive length than one hundred yards of any such road bridge or approach :
- (6) On completion of the work and on the reinstatement to the reasonable satisfaction of the

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said surveyor of any such road or bridge (so far as affects the roadway over it) or any approach thereto the Board shall (notwithstanding anything contained in the Waterworks Clauses Act 1847) in lieu of keeping such road or bridge (so far as affects the roadway over it or any approach thereto) in repair as provided by section 32 of that Act repay to the county council all reasonable expenses of and incident to the maintenance and repair thereof for the period prescribed by the said section but if any difference arises with regard thereto the same shall be settled by arbitration in manner hereinafter provided :

(7) If the Board in the execution of any works in or affecting any such road bridge or approach as aforesaid shall cause any damage injury or disturbance to such road bridge or approach and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Board of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Board shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :

(8) The Board shall take all necessary steps at their own expense for protecting the public using such main road bridge or approach from injury and shall be liable for all damages or loss that may be incurred consequent upon their neglect or omission to provide such protection :

(9) The reasonable expenses of the county council or the county surveyor of and in relation to any such approval of plans or superintendence by them or him as is referred to in this section shall be paid by the Board :

- (10) If any difference arises at any time between the county council and the Board under this section or concerning anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to any such arbitration. A.D. 1925.

104. The provisions of the section of this Act of which the marginal note is "For protection of Cheshire County Council" shall mutatis mutandis and so far as applicable extend and apply to and enure for the benefit and protection of the respective road authorities of each district within or partly within the limits of supply in relation to any street road bridge or approach within such limits and for the time being vested in or maintainable by those authorities respectively and also for the benefit and protection of the mayor aldermen and burgesses of the county borough of Birkenhead in relation to any street road bridge or approach for the time being vested in or maintainable by them in which any works by this Act transferred to the Board are situate or in or in connection with which any works authorised by this Act may be constructed or executed by the Board. For protection of certain road authorities.

105. For the protection of the mayor aldermen and burgesses of the county borough of Birkenhead (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed upon between the Board and the corporation apply and have effect (that is to say):— For protection of Birkenhead Corporation

- (1) If in carrying into effect any of the powers of this Act any injury or damage shall be done or committed to any of the mains pipes cables tramway lines apparatus materials or things belonging to or which may hereafter be laid down by the corporation for supplying gas or electricity or for the working of tramways either by removing or disturbing the ground in or upon or near to which the same is or are placed or by the compression or subsequent

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settling or lowering of the same at any time afterwards or otherwise the Board shall at their own expense within twenty-four hours next after notice in writing given to them by the town clerk or any officer of the corporation cause such mains pipes cables tramway lines apparatus materials and things to be well and effectually repaired and amended and shall pay to the corporation the amount of all damage or loss which may accrue from the escape of gas or electric current by reason of any such injury or damage and in neglect or default thereof it shall be lawful for the corporation to cause such mains pipes cables tramway lines apparatus materials and things so injured or damaged as aforesaid to be effectually repaired amended and made good and the reasonable costs and charges attending the same together with the amount of all damages or loss which may accrue to the corporation from such escape of gas or electric current as aforesaid shall be paid by the Board to the corporation :

- (2) The Board shall not execute any work over across under or within a distance of ten feet of any aqueduct laid or to be laid by the corporation from any reservoirs or other works authorised to be constructed by the corporation under the powers of the Birkenhead Corporation Water Act 1907 or the Birkenhead Corporation Act 1923 or any aqueduct pipe sluice drain or other incidental work attached thereto or connected therewith except in accordance with plans and specifications to be submitted to and reasonably approved by the corporation in writing before the commencement of the work and in the execution of any such work such precautions shall be taken by the Board as the corporation shall reasonably require for the protection of such aqueduct or other works of the corporation :
- (3) The Board shall make good all damage done by them in the execution of any works in pursuance of this Act to any apparatus tramway or other property of the corporation and shall make full compensation to the corporation for any loss

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damage or expenses which they may from time to time sustain by reason or in consequence of any interference with any of such apparatus tramways or other property consequent on or arising out of the leaking bursting or giving way of any aqueduct conduit line of pipes reservoir or other work of the Board :

- (4) The reasonable expense of all repairs or renewals of any apparatus tramway or other property of the corporation which may be rendered necessary by any subsidence resulting from any works of the Board shall be borne and paid by the Board :
- (5) The provisions of this section shall be in addition to and not in derogation of any other provisions of this Act or of any Act incorporated herewith which may enure for the protection and benefit of the corporation :
- (6) Any difference which shall arise between the Board and the corporation under the provisions of this section shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

106. The following provisions for the protection of the London Midland and Scottish Railway Company and the Great Western Railway Company (each of whom is in this section referred to as "the railway company") shall unless otherwise agreed between the Board and the railway company apply and have effect :—

For further protection of certain railway companies.

- (1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works of the Board upon across over under or in any way affecting the railways lands or property belonging to the railway company or used or occupied by them for the purposes of their undertaking or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence if the same be given and to the reasonable satisfaction of the principal engineer

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of the railway company and according to plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Board. Provided that if the said engineer shall not express his disapproval of such plans within twenty-one days from the submission thereof he shall be deemed to have approved thereof :

(2) The Board shall restore and make good the roads over any bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Board and all the works matters and things aforesaid shall be constructed executed and done so as not to cause any injury to the railways bridges level crossings approaches viaducts stations works lands or property of the railway company or interruption to the passage or conduct of traffic over such railways or at any station thereon :

(3) If any such injury or interruption as aforesaid shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Board shall make compensation in respect thereof to the railway company :

(4) Any dispute or difference which may arise between the railway company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall failing agreement be settled by arbitration by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such arbitration.

Costs of
Act &c.

107. All costs charges and expenses of and incident to the opposition of the constituent authorities to the West Cheshire Water Act 1924 as taxed by the taxing officer of the House of Lords or of the House of Commons

shall in the first instance be paid by the constituent authorities and all costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall in the first instance be paid by the constituent authorities in the same proportions and the same manner as any deficiency in the revenues of the Board is by this Act required to be raised and paid by the constituent authorities but in each case the amount so paid shall be repaid to the constituent authorities by the Board out of the moneys to be borrowed by them under the powers of this Act.

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The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

CONSTITUTION AND PROCEEDINGS OF THE WEST CHESHIRE WATER BOARD.

PART I.—PROVISIONS AS TO APPOINTMENT AND QUALIFICATION OF MEMBERS TENURE OF OFFICE CASUAL VACANCIES &c.

(1) The first appointment of members of the Board by each constituent authority shall be made at a meeting of the constituent authority to be held within three months after the passing of this Act or within such further time as the Minister of Health shall allow.

(2) In the case of the first appointment of members of the Board by the Bebington and Bromborough Council the Ellesmere Port and Whitby Council and the Wirral Council the said constituent authorities respectively shall determine in such manner as they may think fit the members who shall retire on the day prior to the annual meeting of the Board in the years 1927 1928 1929 1930 and 1931 and such members shall subject to the provisions of this Act continue in office for the period determined by each such constituent authority.

(3) A member appointed by the rural district council of Chester shall subject to the provisions of this Act continue in office until the day prior to the annual meeting of the Board in the year 1931.

(4) Each constituent authority (except the rural district council of Chester) shall at their annual meetings in and after the year 1927 and the rural district council of Chester (if they have elected to become a constituent authority under the provisions of the section of this Act of which the marginal note is "Establishment of Board") shall at the annual meeting in the year 1931 and at intervals of five years thereafter appoint such members as may be necessary in order to bring the number of members appointed by them up to the number of members of the Board whom they are by this Act authorised to appoint to hold office for a period of five years.

(5) If any constituent authority fail to appoint first members of the Board as by this Act provided it shall be competent

nevertheless for the other members of the Board to carry this Act into execution and if any constituent authority fail subsequently to appoint members of the Board at the proper time for their appointment the then existing members of the Board representing such authority and qualified to be members of the Board shall continue in office till their successors are appointed. A.D. 1925.

(6) A person shall not be qualified to represent more than one constituent authority and if the same person shall be appointed a member of the Board by more than one constituent authority he shall choose under which appointment he will serve and the other appointment shall be deemed void.

(7) If a member of the Board becomes disqualified he shall cease to be a member of the Board.

(8) A person shall be disqualified for being appointed or being a member of the Board if he—

(a) holds any paid office under the Board save as permitted by this Act; or

(b) is concerned in any bargain or contract entered into with the Board or participates in the profit of any such bargain or contract or of any work done under the authority of the Board :

Provided that a person shall not be disqualified for being appointed or being a member of the Board by reason of being interested—

(i) in the sale or lease of any lands or in any loan of money to the Board or in any contract with the Board for the supply from land of which he is owner or occupier of water or materials for work done by or under the authority of the Board; or

(ii) in any newspaper in which any advertisement relating to the affairs of the Board is inserted; or

(iii) in any bargain or contract with the Board as a shareholder in any company;

but he shall not vote at any meeting of the Board on any question in which he is so interested.

(9) Whenever an appointment of a member of the Board has been made the clerk to the constituent authority by whom the appointment was made shall by writing under his hand certify the appointment to the Board and shall forthwith transmit the certificate to the clerk. Provided that in the case of the first appointment the clerk of each constituent authority shall return the names of the members appointed by his authority to the clerk of the other constituent authorities.

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(10) A member of the Board may resign his office by notifying in writing his intention so to do to the chairman or clerk of the Board.

(11) If any member of the Board dies or resigns or is disqualified or ceases to be a member of the Board the constituent authority by whom he was appointed may at any time after the happening of such vacancy appoint another person to be a member of the Board in his place who shall continue in office only so long as the person in whose place he is appointed would have been entitled to continue in office.

(12) Subject to the provisions of this Act the chairman and vice-chairman first appointed by the Board shall continue in office until the day prior to the annual meeting of the Board in the year 1927 and the term of office of any chairman and vice-chairman subsequently appointed shall be one year.

(13) A chairman and vice-chairman may if otherwise qualified be re-appointed and shall continue in office until his successor is appointed unless he dies or resigns or becomes disqualified or ceases to be a member of the Board before the appointment of his successor.

(14) On a casual vacancy occurring in the office of chairman or vice-chairman by reason of death resignation disqualification or otherwise another member shall be appointed in his place to hold office until the time when the person in whose place he is appointed would regularly have gone out of office.

(15) If any member is absent from meetings of the Board for more than six months consecutively except for some reason approved by the Board he shall on the expiration of that period vacate his office.

(16) Where any member becomes disqualified for holding office or vacates his office from absence or otherwise the Board shall forthwith declare the office to be vacant and shall notify the fact to the constituent authority by whom he was appointed in such manner as the Board think fit.

PART II.—PROVISIONS AS TO MEETINGS AND PROCEEDINGS.

(1) The Board shall hold their first meeting at such place and on such day and at such time as may be agreed between the constituent authorities or failing such agreement as shall be appointed for the purpose by the Minister of Health and subsequent meetings of the Board (including their annual meetings) shall be held at such places on such days and at such times as the Board may from time to time appoint: Provided that the Board shall hold their annual meeting in the month of May in every year.

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(2) The chairman or any five or more members of the Board may at any time by writing addressed and sent to the clerk require a special meeting to be convened and the clerk shall convene a meeting accordingly.

(3) The meetings of the Board shall be convened by the clerk to the Ellesmere Port and Whitby Council until the Board have appointed a clerk and afterwards by the clerk. Every meeting shall be convened by circular delivered to each member of the Board or sent by post to or delivered at his residence two clear days at least before the day of the meeting.

(4) To constitute a meeting of the Board there must be present not less than one-third of the members of the Board.

(5) At their first meeting and subsequently at their annual meeting in each succeeding year the Board shall appoint a chairman and a vice-chairman for the ensuing year.

(6) (a) At every meeting the chairman of the Board shall preside but if he is not present at the time appointed for the meeting the vice-chairman if present shall preside and if neither the chairman nor the vice-chairman are present the members then present shall choose one of their number to preside at that meeting.

(b) Every question at a meeting of the Board shall be decided by a majority of the votes of the members present and voting on that question and in the case of an equality of votes the person presiding at the meeting shall have a second or casting vote. Provided always that if at any meeting neither the chairman nor the vice-chairman be present and there be an equality of votes in choosing the member to preside at such meeting it shall be decided by lot which of the members having an equal number of votes shall so preside.

(7) Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose or printed and kept in the form of a book and copies or prints of such minutes shall after each meeting be forwarded by the clerk to the clerk to each constituent authority and the minutes shall be signed by the chairman or other member presiding at the next ensuing meeting.

(8) (a) A minute of the proceedings of the Board or of a committee of the Board signed at the same or the next ensuing meeting by a member of the Board describing himself as or appearing to be chairman of the meeting at which the minute is signed shall be received in evidence without further proof.

(b) Until the contrary is proved every meeting whereof a minute has been so made shall be deemed to have been duly convened and held and all the members of the meeting shall

A.D. 1925. be deemed to have been duly qualified and where the proceedings are proceedings of a committee the committee shall be deemed to have been duly constituted and to have had power to deal with the matters referred to in the minute.

PART III.—GENERAL.

(1) Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings.

(2) The Board may appoint out of their own body such and so many committees either of a general or special nature consisting of such number of persons as they think fit for any purposes which in the opinion of the Board would be better regulated and managed by means of committees and may delegate with or without any restrictions or conditions as they may think fit any of their powers or duties (except any powers of raising money or of fixing or varying the charges to be made for the supply of water by the Board) to any committee of the Board so appointed. The provisions of section 82 of the Local Government Act 1888 with respect to proceedings of committees of county councils shall apply to committees of the Board as if they were committees of a county council.

(3) The Board may appoint and may remunerate a clerk deputy-clerk manager engineer treasurer accountant and such other officers clerks and servants as they from time to time think requisite and all officers clerks and servants so appointed shall (subject to the terms of their appointment) be removable by the Board at their pleasure. No member of the Board or of either of the constituent authorities shall be an officer of the Board but the same person may be and continue an officer of the Board and of a constituent authority. All acts and things required or authorised to be done by the clerk may (subject to any restrictions imposed by the Board) be done by the deputy-clerk and a deputy-clerk may act notwithstanding a vacancy in the office of clerk.

(4) No act or proceeding of the Board shall be questioned on account of any vacancy in their body or on account of any defect in the appointment of any member of the Board.

SECOND SCHEDULE.

A.D. 1925

ACTS AND ORDERS REPEALED FROM THE DAY OF TRANSFER
EXCEPTING HOWEVER FROM SUCH REPEAL THE SEC-
TIONS OF THE SAID ACTS AND ORDERS SET OUT IN
THE THIRD SCHEDULE TO THIS ACT.

Session and Chapter.	Title or Short Title.	Extent of Repeal (subject as above).
47 & 48 Vict. c. lii.	The West Cheshire Water Act 1884	The whole Act.
57 & 58 Vict. c. cxix.	The West Cheshire Water Order 1894 confirmed by the Water Orders Confirmation Act 1894.	The whole Order and so much of the confirming Act as relates thereto.
1 & 2 Geo. 5. c. xlix.	The West Cheshire Water Act 1911	The whole Act.
	The West Cheshire Water Com-pany (Modification of Charges) Order 1923.	The whole Order.
14 & 15 Geo. 5. c. xcvi.	The West Cheshire Water Act 1924	The whole Act.

THIRD SCHEDULE.

PROVISIONS OF THE WEST CHESHIRE WATER ACTS AND
ORDER 1884 TO 1924 SAVED FROM REPEAL.

WEST CHESHIRE WATER ACT 1884.

24. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections and in and upon the lands described upon such plans the works hereinafter described and may do the things by this Act authorised The works herein- before referred to and by this Act authorised to be made and maintained and the things by this Act authorised to be done comprise the following works and things that is to say :—

Power to make water-works.

- * * * * *
- (c) A reservoir to be situate in the township of Prenton and parish of Woodchurch on land forming part of the Prenton Estate and numbered 113 on the $\frac{25}{100}$ Ordnance
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map of the township of Prenton and which land belongs or is reputed to belong to William Thomson and is in the occupation of Albert Mellor and is bounded on the south side by land belonging or reputed to belong to Thomas Brocklebank and on the north-east and west by other land belonging or reputed to belong to William Thomson :

- (d) In connection with the waterworks or any of them to make and maintain and from time to time renew embankments walls dams filtering beds sluices channels tunnels adits pipes wells tanks engines buildings machinery approaches and other works conveniences and appliances connected therewith or incidental thereto :
- (e) The taking collecting diverting impounding and using all or any underground springs and waters which can or may be collected by means of the said waterworks or as may be found in or under any lands to be acquired under the powers of this Act.

WEST CHESHIRE WATER ORDER 1894.

For protection of
Shropshire
Union Rail-
ways and
Canal
Company.

9. The following provisions for the protection of the Shropshire Union Railways and Canal Company (in this section called "the canal company") shall have full force and effect within the new limits defined by this Order and be binding upon the Undertakers and their assigns :—

- (1) Notwithstanding anything contained in this Order or in the Acts incorporated herewith the Undertakers shall not without the previous consent in writing of the canal company lay or maintain any mains pipes or other works upon across under along or in any way affecting the Shropshire Union Canal or the towing-path thereof or any other property now or hereafter belonging to or used or occupied by the canal company otherwise than by means of the public bridges across the same and in such manner that such mains pipes and works shall be laid inside the parapets of such bridges and that no injury to or interference with the permanent structure brickwork or retaining walls of any such bridges or the approaches thereto or the canal or towing-path or other works of the company and no interruption of the traffic on the said canal or towing-path shall be occasioned :
- (2) Whenever and so often as the canal company require to remove alter renew repair or support any bridge across over or along which any mains pipes or works of the Undertakers are laid they shall be at liberty to do so in the same manner as they might have done if this Order had not been made and confirmed and such mains

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pipes and works had not been laid but except in cases of emergency they shall give the Undertakers one month's previous notice before commencing the work. In the event of any such removal alteration renewal repair or support the Undertakers shall in cases of emergency forthwith and in other cases on receiving one month's previous notice in writing when and so often as required by the canal company so to do and at their own expense alter the position of their mains pipes and works and relay the same in the same manner and subject to the same restrictions as in the case of the original bridge :

- (3) All works of the Undertakers in relation to the laying down maintaining altering repairing or relaying of any mains pipes or other works across over or along any such bridges as aforesaid shall be executed except in cases of emergency arising from defects in any of the pipes or other works under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the canal company and only in accordance with plans to be submitted to and in such manner as shall be previously reasonably approved by him (or in case of difference by the engineer to be appointed in manner hereinafter provided) and in all things by and at the expense of the Undertakers who shall also make good and repair the roads over any such bridges and the approaches thereto which the canal company are or may be liable to maintain or repair and which may be disturbed or interfered with by or owing to any operations of the Undertakers. Provided that if the said engineer of the canal company shall not within fourteen days after plans shall have been submitted to him as aforesaid express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof and the Undertakers may forthwith proceed to perform the works specified without his superintendence :
- (4) If by reason of the construction maintenance renewal repair or reconstruction of any of the works authorised by this Order or by any Act incorporated herewith or by the bursting leakage failure or want of repair thereof or otherwise in connexion therewith any loss damage or injury shall be caused to the canal company or to their canal or towing-paths or other works or property or if any interruption shall be thereby occasioned to the traffic passing to from or along the said canal the Undertakers shall make compensation in respect thereof to the canal company and the amount of such compensation shall be recoverable from the Undertakers by all and the same means as any simple contract debt is recoverable :

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- (5) If any difference arise between the canal company and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed by the Board of Trade on the application of either of the parties in difference and his decision shall be conclusive and the cost of the reference shall be borne as he shall direct.

Differences
with railway
and other
companies.

11. If any difference arise between the Undertakers and any railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order for the purpose of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

WEST CHESHIRE WATER ACT 1911.

Confirming
construction
of existing
works.

4. The construction by the Company of the existing works next hereinafter described is hereby sanctioned and confirmed and the Company may from time to time maintain alter improve extend enlarge renew reconstruct or discontinue the same and may retain hold and use the same for the purposes of the undertaking and any interest in the lands in this section described and in the possession of the Company for the purposes of the said works.

The existing works hereinbefore referred to are situate in the hundred of Wirral in the county of Chester and are—

- (a) A well with borehole and heading or conduit pumping engines and boilers with engines and boiler-houses and all other necessary works buildings and conveniences situated in the township of Prenton in the parish of Woodchurch in the Wirral Rural District at the westerly end of Waterpark Road on land in the possession of the Company on the enclosure numbered 26 on the 25-inch Ordnance map (2nd edition 1899) for the township of Prenton :
- (b) A pumping main or line of pipes commencing in the said township of Prenton in the parish of Woodchurch in the Wirral Rural District at the said well and pumping station before described and thence proceeding in a northerly and westerly direction passing from in through or into the several townships or parishes of Prenton Woodchurch Landican Arrowe Thingwall Irby Pensby Barnston and Heswall-cum-Oldfield and terminating in the village of Heswall at the water tower next hereinafter described :

- (c) A water tower situated in the township of Heswall-cum-Oldfield in the parish of Heswall in the Wirral Rural District at the south-east end of Tower Road on land in the possession of the Company being part of the enclosure numbered 207 on the 25-inch Ordnance map (2nd edition 1898) for the township of Heswall-cum-Oldfield :

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- (d) Boreholes and pumping station with pumping engines steam boilers boiler and engine houses water filters and all other necessary works buildings and conveniences situated in the township of Childer Thornton in the parish of Eastham in the Wirral Rural District in Oakfield Road and known as Hooton Pumping Station on land in the possession of the Company on the enclosures numbered 114 115 and 116 on the 25-inch Ordnance map (2nd edition 1899) for the township of Childer Thornton.

7. Subject to the provisions of this Act the Company may take use and appropriate for the purposes of the undertaking all underground streams springs and waters which are will or may be intercepted by means of the works by this Act sanctioned or confirmed.

Power to take waters.

WEST CHESHIRE WATER ACT 1924.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act :—

Incorporation of Acts.

(1) The Lands Clauses Acts :

Provided that any question of disputed compensation under this Act or any Act incorporated therewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the President of the Surveyors' Institute on the application of either party.

* * * * *

4. Subject to the provisions of this Act the Company may enter upon take and use such of the lands in the parish of Childer Thornton delineated on the deposited plans and described in the deposited book of reference as may be required for the undertaking.

Power to acquire lands.

5. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

A.D. 1925.

FOURTH SCHEDULE.

PROVISIONS OF THE WIRRAL WATERWORKS ACTS 1859
AND 1911 APPLIED TO THE BOARD.

WIRRAL WATERWORKS ACT 1859.

Works
authorised.

XXV. The works by this Act authorised comprise the following works (that is to say):—

First—One or more well or wells shaft or shafts drifts or adits with engines pumps tanks conduits pipes and other conveniences to be situate in such part or parts of any one or more of the fields or closes in the township of Prenton in the parish of Woodchurch numbered respectively 1 2 4 and 5 on the deposited plans as are not distant more than one hundred yards from the western limits of deviation as defined upon such plan;

Secondly—A main pipe or line of pipes or aqueduct conduit or conduits with all proper works and conveniences connected therewith commencing from and out of the well or shaft first described and passing thence in an easterly direction from in through or into the several townships or parishes of Woodchurch Prenton Bebington and Tranmere and terminating in the village of Higher Tranmere in the reservoir thirdly described;

* * * * *

Fourthly—A main pipe line of pipes or aqueduct conduit or conduits with all proper works and conveniences connected therewith commencing from and out of the aqueduct secondly described in the field called Farfield adjoining the Storeton road in the township of Prenton and parish of Woodchurch and passing thence from in or through or into the several townships or parishes of Woodchurch Prenton and Oxton and terminating in the township of Oxton in the parish of Woodchurch in the reservoir seventhly described;

* * * * *

All which works will be situate in or pass from through or into the several parishes of Bebington and Woodchurch both in the county of Chester Provided always that notwithstanding anything in this Act or in the deposited plans contained to the contrary it shall not be lawful for the Company to sink or make any well shaft drift driftway or adit anywhere within the limits of this Act that shall be nearer to any existing well of the

Birkenhead Improvement Commissioners than the site hereinbefore prescribed for the well or wells and other works first hereinbefore described. A.D. 1925
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XXVIII. The works by this Act authorised for the supply of the township of Tranmere shall be completed within two years after the passing of this Act and all other works by this Act authorised shall be completed within three years after the passing of this Act and on the expiration of those periods respectively the powers by this Act granted to the Company for the making of the works shall cease to be exercised except as to so much of the works as are then completed. Provided always that nothing in this Act contained shall extend to restrain the Company from enlarging and extending their mains pipes and works from time to time whenever requisite for the supplying of water within the limits of this Act. Period for
completion
of works.

WIRRAL WATERWORKS ACT 1911.

4. The construction by the Company of the existing works next hereinafter described is hereby sanctioned and confirmed and the Company may from time to time maintain alter improve extend enlarge renew reconstruct or discontinue the same and may retain hold and use the same for the purposes of the undertaking and any interest in the lands in this section described and already acquired by the Company for the purposes of the said works. Confirming
construction
of existing
works.

The existing works hereinbefore referred to are situate in the hundred of Wirral in the county of Chester and are—

- (a) A pumping main or line of pipes in the township of Prenton in the parish of Woodchurch in the Wirral Rural District commencing in Waterpark Road opposite its junction with Reservoir Road and thence proceeding in a south-easterly direction along Reservoir Road and terminating in the same township and parish in the reservoirs next hereinafter described;
- (b) Two reservoirs known as "Prenton Reservoirs" situated in the township of Prenton in the parish of Woodchurch in the Wirral Rural District at the south-east end of Reservoir Road on land in the possession of the Company being the enclosure numbered 79 on the 25-inch Ordnance map (2nd edition 1899) for the township of Prenton.

5. In addition to the foregoing works the Company may upon any of the lands mentioned in the section of this Act of which the marginal note is "Confirming construction of existing works" continue and make and maintain and renew all such existing or other embankments walls dams sluices channels tunnels adits pipes tanks buildings machinery approaches and Subsidiary
works.

A.D. 1925. other works conveniences and appliances as may be necessary or convenient in connection with or subsidiary or incidental to the before-mentioned works or any or either of them.

Inspection
of works.

10. If and when the Company supply water to consumers within that part of their statutory limits of supply as is within the jurisdiction of the county council of the county palatine of Chester the following provisions shall apply :—

The county council of the county palatine of Chester may from time to time appoint and authorise one person to enter at all reasonable times on the property of the Company for the purpose of inspecting any works or other apparatus of the Company and of taking such samples of the water as he may think fit from any part or parts of the works of the Company and any person who hinders or obstructs any such person in the performance of his duty under this section shall be liable on summary conviction to a penalty not exceeding five pounds for every such offence.

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